

YOUR DEFENSES — PLAIN ENGLISH GUIDE

Your Answer form lists legal defenses. This guide explains what each one means and what evidence you need to prove it. Check **ONLY** the defenses that are true.

☒ **Landlord Failed to Make Repairs**

Also called 'breach of warranty of habitability' or 'failure to maintain.' You are saying the landlord refused to fix things like broken heat, leaking roof, mold, broken plumbing, or pests despite being notified.

EVIDENCE YOU NEED: Photos/videos of the problem, dated. Written repair requests to the landlord (texts, emails, letters). Any inspection reports. Witness statements.

☐ **Landlord Failed to Repair**

Same as above — the landlord knew about a problem and did not fix it. You need **PROOF** that you notified them (written request, dated).

☐ **Defendant Made Repairs**

You fixed the problem yourself because the landlord would not. You may be entitled to deduct the cost from rent.

EVIDENCE YOU NEED: Receipts for supplies, photos of repairs, dated notice to landlord.

☐ **I Dispute the Amount of Rent Claimed**

The landlord says you owe more than you actually do. You may have already paid some of it, or the landlord overcharged you.

EVIDENCE YOU NEED: Rent receipts, bank statements, canceled checks, lease agreement showing the correct rent amount. A written calculation of what you believe you owe.

☐ **Unlawful Fees or Charges**

The landlord is demanding late fees, administrative fees, or utility charges that exceed legal statutory caps (e.g. C.R.S. § 38-12-105) or were not authorized in the written lease.

EVIDENCE YOU NEED: Your lease agreement, the landlord's ledger/billing statements, and proof of timely payment.

☐ **I Do Not Owe the Amount Claimed**

Same as above — the landlord is claiming money you do not actually owe.

☐ **I Already Paid**

You paid the rent the landlord claims is owed.

EVIDENCE YOU NEED: Receipts, bank statements, canceled checks, money order stubs, or payment confirmation emails/texts showing the date and amount paid.

☐ **No Rent Is Due**

You do not owe any rent — you either already paid in full, or no rent was owed.

☐ **I Tried to Pay But Landlord Refused**

You offered or tried to pay the full amount but the landlord would not accept it. This is important because it shows you acted in good faith.

EVIDENCE YOU NEED: Written proof you offered to pay (texts, emails, letters). If you tried to hand them a check, a dated letter describing the attempt.

☐ **Offered to Pay**

Same as above — you made a good faith offer to pay but were refused.

☐ **Retaliatory Eviction**

The landlord is evicting you because you exercised a legal right — like complaining to code enforcement, requesting repairs, joining a tenant union, or reporting violations.

EVIDENCE YOU NEED: Dated proof of your complaint/action that triggered the retaliation. Timeline showing the eviction was filed shortly after your complaint. Any threatening communication from the landlord.

☐ **Discriminatory Eviction**

The eviction violates fair housing laws — you are being evicted because of your race, religion, sex, disability, family status, national origin, or other protected category.

EVIDENCE YOU NEED: Any discriminatory statements by the landlord (texts, emails, witnesses). Evidence that other tenants in similar situations were treated differently.

☐ **Fair Housing Violation**

Same as above — the eviction violates federal or state fair housing laws.

☒ **Improper or No Notice**

The landlord did not give you proper legal notice before filing the eviction. The notice may be missing required information, or the timeline was wrong.

EVIDENCE YOU NEED: The notice you received (bring it to court). State law showing what proper notice requires. Proof of WHEN you received it.

☐ **No Notice Given**

You never received any written notice before the eviction was filed.

☐ **Landlord Breached the Rental Agreement**

The landlord violated the lease — for example, entering without notice, shutting off utilities, removing your belongings, or failing to provide essential services.

EVIDENCE YOU NEED: Your lease agreement showing the landlord's obligations. Proof of the violations (photos, dates, communications).

☐ **The Plaintiff Is Not the Owner**

The person or company suing you does not actually own the property. Only the actual owner or authorized agent can file for eviction.

☐ **Landlord Waived the Eviction**

The landlord did something that canceled the eviction notice — for example, accepting rent after sending the notice, or telling you that you can stay.

EVIDENCE YOU NEED: Proof the landlord accepted rent after the notice (receipt, bank statement). Written or verbal statements that the eviction is canceled. Witnesses.

☒ **Landlord Accepted Rent After Notice**

The landlord took your rent money after sending the eviction notice. This can cancel the eviction in many states.

☐ **I Fixed the Problem**

The landlord claimed you violated the lease and you fixed it before the deadline.

EVIDENCE YOU NEED: Proof of when you corrected the issue (photos, receipts, witness). Proof the correction was made before the deadline in the notice.

☐ **I Admit Everything — No Trial Needed**

You agree with everything the landlord claims and are not contesting the eviction. You just want to document your position and possibly negotiate move-out time.

☐ **I Admit Partial Responsibility**

You agree you owe some money but not the full amount claimed by the landlord.

☐ **I Deny Everything**

You deny all of the landlord's claims. You believe the eviction is completely wrong.

☐ **I Contest Court Jurisdiction**

You believe this court does not have the authority to hear this case — for example, wrong county, wrong court type, or the case was filed improperly.

☐ **Other Defenses**

You have another reason the eviction is wrong that is not listed on the form. Write a clear, brief explanation. Bring evidence to support it.

IMPORTANT: This document is provided for informational purposes only. It is not legal advice. If you need legal advice, contact a licensed attorney.
You are responsible for your own case and what you say in court.